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highest-level top executives during and after an acquisition is more strongly associated with successful outcomes than retaining lower-ranking top executives. The paragraph then states that this research has limitations, including failing to take into account how long the highest-ranking executives have worked for the company. The second paragraph explains that Bergh's study responds to those limitations by analyzing the role of tenure (length of service in the organization).

A. **Correct.** The passage indicates that the research about the role of highest-level executives in acquisitions is limited by its failure to consider tenure.

B. The passage does not portray the failure of the research to address this as a limitation of the research in question.

C. The passage does not portray the failure of the research to consider this as a limitation of the research in question.

D. The passage indicates that the research does, in fact, differentiate between the respective contributions of these two groups of top executives.

E. Undervaluing the contributions of lower-level top executives is not one of the limitations mentioned in the passage.

The correct answer is A.

Questions 496–499 refer to the passage on page 450.

Main Idea Summary

The passage is primarily concerned with Marcus Garvey's role in the African American revitalization movement of the early twentieth century. The passage's first paragraph states that the return of African American soldiers from the First World War created an ideal constituency for Garvey's message of pride and unity among African Americans. The second paragraph describes the disillusionment of these soldiers upon their return and discusses Anthony F. C. Wallace's idea that the tension between a culture's expectations and reality can inspire a revitalization movement. The final paragraph argues that Garvey did not create the consciousness on which he built his movement, but merely gave it its political expression.

496. According to the passage, which of the following contributed to Marcus Garvey's success?

A. He introduced cultural and historical consciousness to the African American community.

B. He believed enthusiastically in the traditional American success ethos.

C. His audience had already formed a consciousness that made it receptive to his message.

D. His message appealed to critics of African American support for United States military involvement in the First World War.

E. He supported the movement to protest segregation that had emerged prior to his arrival in the United States.

Supporting Idea

To answer this question, find what the passage states explicitly about how Marcus Garvey achieved his success. The passage begins by stating that Garvey arrived at the right time: that returning African American soldiers were primed to receive what he had to say about the African American community. These soldiers already held strong beliefs about their rights to opportunities for success; the passage concludes that the divide between the soldiers' expectations and their experiences led to Garvey's success.

A. The passage states that African American people were in possession of a strong cultural and historical consciousness prior to Garvey's arrival in the United States.

B. The passage attributes belief in the traditional American success ethos to African American people who joined the armed forces; it does not mention Garvey's beliefs on this subject.

C. **Correct.** African American soldiers who had experienced segregation during the First World War were ready to hear what Garvey had to say.

D. Critics of African American support for United States involvement in the First World War are not mentioned in the passage.

E. While Garvey most likely would have supported a movement to protest segregation, such a movement is not discussed in the passage.

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The correct answer is C.

497. The passage suggests that many African American people responded to their experiences in the armed forces in which of the following ways?

A. They maintained as civilians their enthusiastic allegiance to the armed forces.

B. They questioned United States involvement in the First World War.

C. They joined political organizations to protest the segregation of African American troops and the indignities they suffered in the military.

D. They became aware of the gap between their expectations and the realities of American culture.

E. They repudiated Garvey's message of pride and unity.

Inference

According to the passage, African Americans enthusiastically joined the armed services but were confronted with continued segregation, both in the military and when they returned home. The passage does not explicitly state their response to these experiences, but a response can be inferred. The second paragraph refers to anthropologist Anthony F. C. Wallace, who argued that a revitalization movement may be brought about by the perception of a gap between expectations and reality, and such a revitalization did occur in African American communities following the First World War; thus, many African American people may have become aware of a gap such as Wallace described.

A. The passage states that African American troops experienced segregation and other indignities while in the military; these experiences could reasonably be inferred to have dampened their enthusiasm for the armed forces. Regardless, the passage does not suggest an enthusiastic allegiance.

B. The passage describes African American people's enthusiasm about joining the military. Although they experienced segregation and other indignities while in the military, the passage does not suggest that their opinion about involvement in the war changed.

C. While African American troops may have joined political organizations, the passage does not provide any actual evidence of this having occurred.

D. **Correct.** The fact that, as the passage states, a revitalization movement occurred in the African American community following the First World War suggests that the returning soldiers did become aware of the gap between their expectations of an improved situation with regard to segregation and the reality of continued segregation in the United States.

E. The passage does not suggest that African American troops repudiated Garvey's message. On the contrary, it states that Garvey built *the largest revitalization movement in African American history*. This suggests that the members of the African American community, including the returning soldiers, were extremely receptive to Garvey's message.

The correct answer is D.

498. It can be inferred from the passage that the "scholars" mentioned in line 24 believe which of the following to be true?

A. Revitalization resulted from the political activism of returning African American soldiers following the First World War.

B. Marcus Garvey had to change a number of prevailing attitudes in order for his mass movement to find a foothold in the United States.

C. The prevailing sensibility of the African American community provided the foundation of Marcus Garvey's political appeal.

D. Marcus Garvey hoped to revitalize consciousness of cultural and historical identity in the African American community.

E. The goal of the mass movement that Marcus Garvey helped bring into being was to build on the pride and unity among African Americans.

Inference

To determine what it is logical to infer regarding the scholars discussed in the third paragraph, look at the

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context in which they are mentioned. According to the passage, these scholars argue that Garvey was responsible for creating a particular consciousness within the African American community, a consciousness that the passage identifies as *identity, strength, and [a] sense of history.* Unlike the passage author, these scholars believe strongly in Garvey's responsibility for this consciousness, so they would most likely reject any suggestion that it existed prior to his arrival and activism.

A. According to the passage, the scholars believe that Garvey was responsible for the creation of the consciousness that led to revitalization, which suggests that revitalization resulted from Garvey's activism, not soldiers' activism.

B. **Correct.** According to the passage, the scholars believe that Garvey created the consciousness that led to his revitalization movement. This suggests that he had to change prevailing attitudes in order to foster this new consciousness.

C. According to the passage, the scholars believe that Garvey created a new consciousness in the African American community; thus, the prevailing sensibility could not have provided a foundation for his appeal.

D. According to the passage, the scholars believe that Garvey built his revitalization movement on a new consciousness of cultural and historical identity, not a previously existing one.

E. According to the passage, the scholars' position is that Garvey's movement was built on a new sense of pride and unity that he provided, and that that sense did not precede Garvey's work.

The correct answer is B.

499. According to the passage, many African American people joined the armed forces during the First World War for which of the following reasons?

A. They wished to escape worsening economic conditions in African American communities.

B. They expected to fulfill ideals of personal attainment.

C. They sought to express their loyalty to the United States.

D. They hoped that joining the military would help advance the cause of desegregation.

E. They saw military service as an opportunity to fulfill Marcus Garvey's political vision.

Supporting Idea

This question depends on identifying what the passage states directly about African American people's reasons for joining the armed forces. The reason offered by the passage is that the African American people who entered the armed forces did so because they were *hoping to participate in the traditional American ethos of individual success*.

A. Although this is a plausible reason for entering the armed forces, the passage does not discuss economic conditions.

B. **Correct.** The passage states that African American people who joined the armed forces during the First World War wanted to achieve individual success.

C. The passage does not discuss African American people's loyalty to the United States.

D. The passage states that African American troops experienced segregation, but it does not suggest that they had hoped their joining the military would promote desegregation.

E. The passage suggests that African American troops did not become aware of Marcus Garvey's political vision until after they returned from the First World War.

The correct answer is B.

Questions 500–504 refer to the passage on page 452.

500. The author mentions rhinoceroses and elephants (see line 39) primarily in order to

A. explain why sloth bears are not successful foragers in grassland habitats

B. identify the predators that have had the most influence on the behavior of sloth bears

C. suggest a possible reason that sloth bear cubs do not use tree-climbing as a defense

D. provide examples of predators that were once widespread across the Indian subcontinent

E. defend the assertion that sloth bears are under greater threat from dangerous animals than are other bear

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E. defend the assertion that sloth bears are under greater threat from dangerous animals than are other bear species

Supporting Idea

Sloth bear females sometimes carry their cubs during their first nine months even while foraging, even though the cubs learn to walk at six months. The passage seeks to explain how that behavior may have evolved and argues that the evolution of sloth bears likely selected against climbing trees for defense. Among the reasons suggested is that climbing trees offered sloth bears no protection against predators or other animals, including rhinoceroses and elephants.

A. The passage suggests the contrary, stating that sloth bears are "especially attracted to food-rich grasslands."

B. The passage suggests that a variety of predators posed a threat to sloth bears. It indicates that rhinoceroses and elephants have a hostile relationship with sloth bears but does not characterize that relationship as predatory.

C. **Correct.** The fact that rhinoceroses and elephants could topple trees minimized the protection climbing trees could offer to sloth bear cubs confronted by predators or tree-toppling animals.

D. The passage does not characterize rhinoceroses and elephants as predators that were once especially widespread across all of India.

E. This assertion is to be found in the passage, but defending it is not the primary purpose of line 39.

The correct answer is C.

501. Which of the following, if true, would most weaken the author's argument in lines 14–19?

A. Cub-carrying behavior has been observed in many nonmyrmecophagous mammals.

B. Many of the largest myrmecophagous mammals do not typically exhibit cub-carrying behavior.

C. Some sloth bears have home ranges that are smaller in size than the average home ranges of black bears.

D. The locomotion of black bears is significantly more efficient than the locomotion of sloth bears.

E. The habitat of black bears consists of terrain that is significantly more varied than that of the habitat of sloth bears.

Evaluation

The argument in lines 14–19 is meant to support the claim that the cubs of sloth bears should be able to walk fast enough to keep up with their mother. The support provided relies on indicating relevant similarities between American black bears and sloth bears. What new information, if true, would undermine this argument?

A. The argument hinges on a comparison regarding range size and locomotion rather than the presence or absence of ant-eating. The information given in this option is logically irrelevant to the argument.

B. This information does not undermine support for the claim that sloth bear cubs should be just as able to keep pace with their mother as American black bear cubs.

C. It is to be expected that home-range size would vary for individuals in both species of bears. This fact is consistent with the information given in lines 14–19 and lacks any weakening effect on the support provided for the argument's conclusion.

D. **Correct.** If the locomotion of sloth bears is less efficient than that of black bears, then expenditure of energy over a given distance would be greater for sloth bear cubs. This information, if true, would cast doubt on support for the conclusion that sloth bear cubs should be able to walk fast enough to keep pace with their mother.

E. If this is true, the terrain traversed by black bear cubs would likely be more challenging than that traversed by sloth bear cubs. The addition of such information would tend to strengthen rather than weaken support for the argument's conclusion.

The correct answer is D.

502. Which of the following is mentioned in the passage as a way in which brown bears and sloth bears are similar?

A. They tend to become aggressive when provoked.

B. They live almost exclusively in treeless environments.

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C. They are preyed upon by animals that can climb or topple trees.

D. They are inefficient in their locomotion.

E. They have relatively large canine teeth.

Supporting Idea

Note what is being asked: What does the passage state is a resemblance between sloth bears and brown bears?

A. **Correct.** The passage states that "brown bears … rely on aggression to protect their cubs" and sloth bears, "[l]ike brown bears," are "easily provoked to aggression."

B. The passage states that brown bears and sloth bears may have evolved in relatively treeless environments but does not assert that almost all current habitats of sloth bears lack trees.

C. The passage indicates that some grassland habitats of sloth bears have tree-climbing animals that may prey on them. Even if this is also true of brown bears, the passage does not mention it.

D. The passage does not explicitly characterize the locomotion of both brown bears and sloth bears as inefficient.

E. The passage states that sloth bears have relatively large canine teeth but does not attribute this to brown bears.

The correct answer is A.

503. The author mentions which of the following as evidence for the view that cub-carrying behavior among sloth bears functions primarily as a defense from predation?

A. The relative passivity of sloth bears in comparison with other species of bears

B. The age at which sloth bear cubs can defend themselves from predators

C. The unsuitability of cub-carrying for myrmecophagous foraging

D. The behavior of sloth bear cubs when they first perceive danger

E. The inefficient locomotion of sloth bears and other myrmecophagous animals

Logical Structure

The question asks what characteristic of sloth bears is evidence that cub-carrying behavior evolved primarily as an adaptive strategy to defend against predation.

A. Sloth bears are not characterized as more passive than other bear species. On the contrary, the author describes them as "easily provoked to aggression."

B. The passage gives no information regarding the age at which bear cubs become able to defend themselves against predators.

C. One explanation for cub-carrying that the passage considers but rejects is that cub-carrying may be needed for myrmecophagy.

D. **Correct.** The passage states that sloth bear cubs "climb on their mother's back at the first sign of danger." The author infers that this behavior may have originated mainly as an adaptive strategy to defend against predation.

E. The inefficient locomotion of sloth bears is not mentioned as evidence that cub-carrying evolved as a defense against predation. To suggest that inefficient locomotion is not a sufficient explanation for cub-carrying, the author notes that although the locomotion of polar bears, like that of sloth bears, is inefficient, polar bear cubs walk along with their mother.

The correct answer is D.

504. The primary purpose of the passage is to

A. trace the development of a particular behavioral characteristic of the sloth bear

B. explore possible explanations for a particular behavioral characteristic of the sloth bear

C. compare the defensive strategies of sloth bear cubs to the defensive strategies of cubs of other bear species

D. describe how certain behavioral characteristics of the sloth bear differ from those of other myrmecophagous mammals

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mammals

E. provide an alternative to a generally accepted explanation of a particular behavioral characteristic of myrmecophagous mammals

Main Idea

The passage is focused on a puzzling behavior of sloth bears: females carrying their cubs even after the cubs have become able to walk on their own. The goal is to explain how such behavior would have evolved. Behaviors evolve if they promote the survival of a species.

A. Tracing the development of a puzzling behavior is distinct from explaining the survival function served by that behavior and explaining why sloth bears evolved with that behavior.

B. **Correct.** The passage consists of a consideration of explanations for how cub-carrying could have served a survival function for sloth bears and arguing for the preferability of one of those explanations.

C. Some comparisons are briefly made (e.g., "black bear cubs use trees for defense"), but any such comparison is subordinate to the main purpose of the passage.

D. A brief allusion is made in passing to the fact that other myrmecophagous species also engage in cub-carrying, but the making of any such comparison cannot plausibly be regarded as the primary purpose of the passage.

E. No such "generally accepted explanation" is described in the passage, so the primary purpose of the passage cannot be to provide an alternative to such an explanation.

The correct answer is B.

Questions 505–508 refer to the passage on page 454.

505. According to the passage, theory B states that which of the following is a factor that enables a schooling fish to escape predators?

A. The tendency of fish to form compact groups

B. The movement of other fish within the school

C. The inability of predators to detect schools

D. The ability of fish to hide behind one another in a school

E. The great speed with which a school can disperse

Supporting Idea

This question depends on understanding what the passage states about theory B, the "confusion effect." One element of theory B is that predators may experience sensory confusion created by large numbers of moving fish in a school.

A. The compactness of groups of schooling fish is an element of theory A, not theory B.

B. **Correct.** It is the movement of schooling fish around a predator that creates sensory confusion in the predator; this movement may distract the predator and help to protect individual fish in the school.

C. According to the passage's description of theory A, predators are actually slightly more likely to detect schools than they are to detect individual fish.

D. Theory B does not involve fish hiding behind one another, but rather moving around the predator.

E. The passage does not discuss the speed of dispersal of schools of fish.

The correct answer is B.

506. According to the passage, both theory A and theory B have been developed to explain how

A. fish hide from predators by forming schools

B. forming schools functions to protect fish from predators

C. schooling among fish differs from other protective behaviors

D. small fish are able to make rapid decisions

E. small fish are able to survive in an environment densely populated by large predators

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Supporting Idea

The passage states in its first paragraph that two theories were developed to explain why schooling occurs in so many fish species and that they both assume that schooling helps protect fish from predators.

A. While theory A involves an explanation of how schooling makes an individual fish less likely to be found by predators, theory B explains how schooling protects fish even when they are detected by predators.

B. **Correct.** Both theory A and theory B begin with the assumption that schooling provides protection from predators, and each theory offers a different explanation for how that protection occurs.

C. The passage does not discuss protective behaviors other than schooling.

D. The decision-making ability of predators, not schooling fish, is discussed in the passage; schooling is presented as an instinctive behavior.

E. The passage suggests that only theory B helps explain schooling behavior in environments where many predators, large or otherwise, are found, and that theory A explains schooling in areas where predators are not as abundant.

The correct answer is B.

507. According to one explanation of the "confusion effect," a fish that swims in a school will have greater advantages for survival if it

A. tends to be visible for no more than 200 meters

B. stays near either the front or the rear of a school

C. is part of a small school rather than a large school

D. is very similar in appearance to the other fish in the school

E. is medium-sized

Inference

The "confusion effect" is discussed in the third and fourth paragraphs. The first explanation of the "confusion effect" proposes that because predators prefer to select distinctive prey, they find it difficult to select one fish from among many that look the same.

A. The 200-meter visibility of fish is part of the explanation for theory A, not theory B (the "confusion effect").

B. The location of an individual fish within a school is not discussed in the passage as being important to the "confusion effect."

C. The size of a school of fish is not discussed as an element of the "confusion effect."

D. **Correct.** Because predators, according to the "confusion effect," prefer to select prey that is distinct from the rest of the school, a fish that is similar in appearance to the other fish in its school would most likely enjoy a survival advantage.

E. The size of a fish relative to the other fish in its school would most likely contribute to its ability to survive: that is, if it resembled other fish in size, it would be safer, based on what the passage says about the "confusion effect." Furthermore, the passage gives no reason to think that merely being medium-sized would confer any advantage (unless the other fish were medium-sized as well).

The correct answer is D.

508. The author is primarily concerned with

A. discussing different theories

B. analyzing different techniques

C. defending two hypotheses

D. refuting established beliefs

E. revealing new evidence

Main Idea

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Determining the author's primary concern depends on understanding the focus of the passage as a whole. The author presents two theories that purport to account for why fish, particularly small fish, tend to school, and explains the arguments of proponents of each theory.

A. **Correct.** The author discusses two theories—identified as theory A and theory B—that account for the tendency of fish to school.

B. The author is not concerned with different techniques in the passage.

C. The two theories of why fish school could be referred to as hypotheses, but the author is not primarily concerned with defending them; rather, the passage explains how each attempts to account for the phenomenon in question.

D. The author presents, rather than refutes, beliefs about why fish tend to school.

E. The author reveals no evidence, new or otherwise, in the passage. The passage is a general discussion of scientific opinions based on existing evidence.

The correct answer is A.

Questions 509–563 — Difficulty: Medium

Questions 509–514 refer to the passage on page 455.

509. According to the passage, which of the following was true of the treaty establishing the Fort Berthold Indian Reservation?

A. It was challenged in the Supreme Court a number of times.

B. It was rescinded by the federal government, an action that gave rise to the Winters case.

C. It cited American Indians' traditional use of the land's resources.

D. It failed to mention water rights to be enjoyed by the reservation's inhabitants.

E. It was modified by the Supreme Court in *Arizona v. California*.

Supporting Idea

This question depends on recognizing what the passage says about the treaty that established the Fort Berthold Indian Reservation. The passage indicates that the treaty does not mention water rights, but the federal government had intended, according to the Supreme Court, to reserve for the inhabitants of the reservation the waters that were essential to the usefulness of the land.

A. The passage does discuss Supreme Court cases, but it does not explicitly mention any challenges in the Supreme Court to the treaty.

B. The passage does not state that the federal government rescinded the treaty.

C. The passage does not indicate that the treaty made any reference to the traditional use of the land's resources.

D. **Correct.** The passage indicates that the treaty does not mention water rights.

E. The passage's reference to *Arizona v. California* relates to the treaty that established the Fort Berthold Indian Reservation only in that *Arizona v. California* refers to the Winters doctrine, which was established in a case regarding that treaty; *Arizona v. California* does not modify that treaty in any way.

The correct answer is D.

510. The passage suggests that, if the criteria discussed in lines 10–20 of the text were the only criteria for establishing a reservation's water rights, which of the following would be true?

A. The water rights of the inhabitants of the Fort Berthold Indian Reservation would not take precedence over those of other citizens.

B. Reservations established before 1848 would be judged to have no water rights.

C. There would be no legal basis for the water rights of the Rio Grande pueblos.

D. Reservations other than American Indian reservations could not be created with reserved water rights.

E. Treaties establishing reservations would have to mention water rights explicitly in order to reserve water for a particular purpose.

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a particular purpose.

Inference

The question requires you to make an inference based on a hypothetical situation in which the criteria discussed in lines 10–20 are the only criteria relevant to establishing a reservation's water rights. These criteria relate to any reservation that has been formally withdrawn from federal public lands, in which the circumstances of that withdrawal make clear that the government had intended to reserve both water and land when the reservation was established. Because the Rio Grande pueblos never formally constituted a part of federal public lands, they were never formally withdrawn from these lands, and so this set of criteria does not apply to these pueblos. Thus, if these were the only legal criteria for establishing water rights, then there would be no legal basis for water rights for the Rio Grande pueblos.

A. The criteria, which were established on the precedent set in the *Winters v. United States* ruling, all apply to the Fort Berthold Indian Reservation.

B. Although in actual fact there were no Indian reservations formally established before 1848, nothing in the passage suggests that there were not any, or that none would have met the criteria.

C. **Correct.** If the criteria were the only criteria relevant for establishing water rights, then the passage suggests that, because the Rio Grande pueblos were never formally withdrawn from federal public lands, there would be no legal basis for water rights for these pueblos.

D. The criteria as expressed in the passage do not restrict the type of reservation covered to American Indian reservations.

E. The criteria are meant to cover any circumstances in which the government intended to reserve water rights, whether water rights are explicitly mentioned or not.

The correct answer is C.

511. Which of the following most accurately summarizes the relationship between *Arizona v. California*, as that decision is described in the passage, and the criteria discussed in lines 10–20?

A. *Arizona v. California* abolishes these criteria and establishes a competing set of criteria for applying the Winters doctrine.

B. *Arizona v. California* establishes that the Winters doctrine applies to a broader range of situations than those defined by these criteria.

C. *Arizona v. California* represents the sole example of an exception to the criteria as they were set forth in the Winters doctrine.

D. *Arizona v. California* does not refer to the Winters doctrine to justify water rights, whereas these criteria do rely on the Winters doctrine.

E. *Arizona v. California* applies the criteria derived from the Winters doctrine only to federal lands other than American Indian reservations.

Evaluation

This question requires you to determine how *Arizona v. California*, as it is described in the passage, relates to the criteria discussed in lines 10–20. Those criteria, which were established in various decisions based on the precedent of *Winters v. United States*, lay down conditions under which courts can uphold federal rights to reserve water. One of the criteria is related to land formally withdrawn from federal public lands. *Arizona v. California* establishes that the Winters doctrine—which stipulates that water rights need not have been granted explicitly—applies to a broader range of situations than those defined by the criteria. For instance, the doctrine can apply in cases in which the land in question was never formally withdrawn from public lands.

A. The passage does not indicate that *Arizona v. California* abolishes these criteria. It merely indicates that *Arizona v. California* recognizes further situations to which the Winters doctrine can apply.

B. **Correct.** The passage indicates that *Arizona v. California* applies the Winters doctrine to a situation that falls outside these criteria.

C. The passage does not indicate that there are no other exceptions besides *Arizona v. California* to these criteria.

D. The passage indicates that *Arizona v. California* does refer to the Winters doctrine to justify water rights.

E. The passage does not indicate that *Arizona v. California* applies these criteria at all; instead, *Arizona v.*

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E. The passage does not indicate that *Arizona v. California* applies these criteria at all; instead, *Arizona v. California* broadens the range of situations to which the Winters doctrine applies.

The correct answer is B.

512. The "pragmatic approach" mentioned in lines 37–38 of the passage is best defined as one that

A. grants recognition to reservations that were never formally established but that have traditionally been treated as such

B. determines the water rights of all citizens in a particular region by examining the actual history of water usage in that region

C. gives federal courts the right to reserve water along with land even when it is clear that the government originally intended to reserve only the land

D. bases the decision to recognize the legal rights of a group on the practical effect such a recognition is likely to have on other citizens

E. dictates that courts ignore precedents set by such cases as *Winters v. United States* in deciding what water rights belong to reserved land

Evaluation

This question depends on determining how the term *pragmatic approach* is used in lines 37–38. The passage states that what constitutes an American Indian reservation is a matter not of legal definition, but of practice. The Rio Grande pueblos, though they were never formally established by a withdrawal from federal public lands, have always been treated in practice as reservations. This is what is described in the passage as a *pragmatic approach*.

A. **Correct.** The passage refers to the idea that *[w]hat constitutes an American Indian reservation is a question of practice, not of legal definition* as a *pragmatic approach*. Thus, the pragmatic approach does not require that a reservation has been formally established, but only that it has been traditionally treated as such.

B. The passage does not concern itself with the water rights of all citizens.

C. The passage clearly indicates that determining whether the government intended to reserve water along with the land is crucial for courts.

D. The passage does not specifically consider the likely practical effect of recognizing a particular group's legal rights on other citizens.

E. The passage indicates that the pragmatic approach is supported by *Arizona v. California*, which used, and expanded on, the precedent set by *Winters v. United States*.

The correct answer is A.

513. It can be inferred from the passage that the Winters doctrine has been used to establish which of the following?

A. A rule that the government may reserve water only by explicit treaty or agreement

B. A legal distinction between federal lands reserved for American Indians and federal lands reserved for other purposes

C. Criteria governing when the federal government may set land aside for a particular purpose

D. The special status of American Indian tribes' rights to reserved land

E. The federal right to reserve water implicitly as well as explicitly under certain conditions

Inference

This question requires you to make an inference based on facts the passage cites regarding the Winters doctrine. The passage indicates that the Supreme Court ruled in *Winters v. United States* that, despite the fact that the treaty establishing the Berthold Indian Reservation made no explicit mention of water rights, the federal government had intended to reserve such rights to the American Indians living on that reservation. Later court rulings that cited the Winters ruling as precedent further refined this doctrine such

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